

December 10, 2018



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20690

EXPIRATION DATE: 2020-05-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: KIK Custom Products Inc.
Rosemont, IL
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the transportation in commerce of DOT specification 2P, 2Q and 2Q1; and non-DOT specification metal inside containers that have been tested by an alternative method that deviates from the requirements of the hot water bath test. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.306(a)(3)(v) in that the inside containers are tested in accordance with ASTM E2819-11.
5. BASIS: This special permit is based on the application of KIK Custom Products Inc dated June 26, 2018, submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Aerosols, non-flammable, (each not exceeding 1 L capacity)	2.2	UN1950	N/A
Consumer commodity	9	ID8000	N/A
Consumer commodity	ORM-D	N/A	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Inside containers are DOT Specification 2P, 2Q, and 2Q1 and non-DOT specification non-refillable metal inside containers. Inside containers shall not contain any liquid, paste, powder, or other material that is defined as a hazardous material.

b. TESTING: Each specification and non-specification metal inside container shall be subjected to the hot water bath test in accordance with § 173.306(a)(3)(v) except that:

(1) Inside containers shall be visually inspected in accordance with Reference Standard ASTM E2819-11 (Reapproved 2015) "Standard Practice for Single- and Multi-Level Continuous Sampling of a Stream of Product by Attributes Indexed by AQL", on file with the Office of Hazardous Materials Safety Approvals and Permits Division (OHMSAPD) per the Continuous Sampling Plan CSP-F, as described in Figure A1.2.

(2) The period, in terms of number of units, N , shall be determined from Table 3-A-2 of the Reference Standard. If N is smaller than value of i from the table, all units shall be inspected.

(3) At the start of production or of the period for which the plan is to be applied, each inside container shall be inspected by the screening crew. A checking inspection shall be performed concurrently at a

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frequency f as defined in the application on inside containers passed by the screening crew.

(4) Water bath inspectors shall be calibrated during no fewer than two randomly selected work orders per shift, per calendar week producing containers in accordance with "Water Bath Alternative Testing - Quality Assurance Evaluation Discussion" on file with OHMSAPD. If the defective test samples are not detected by the inspectors, the sampling inspection shall not be initiated until the scheduled calibration is performed and all defective samples detected.

(5) Sampling inspection is initiated when the following requirements are satisfied:

(i) All inside containers are made according to the same drawings and specifications under stable conditions of production. This requirement is satisfied if there are no changes to the production process due to innovation, significant changes in materials, or interruptions other than those due to the end of the shift, day, or week.

(ii) At least i consecutive inside containers inspected by the screening crew during 100% inspection are found free of leaks or deformation. Under the sampling plan, " i " must not be less than 2,953 inside containers.

(iii) None of the i consecutive inside containers found defect-free by the screening crew are found defective by the checking inspector(s). When sampling inspection is begun, screening (100% inspection) is terminated and samples are taken at frequency f . Under the sampling plan, " f " is 0.125.

(6) Sampling inspection shall be terminated and 100% inspection (screening) shall be resumed if any of the following conditions occur. For critical defects, screening shall begin with the inside container just after the last defect-free sample:

(i) The production process is interrupted for more than three operating days, or the requirements of paragraph b.(5) are otherwise not satisfied.

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(ii) Any inside container leaking or deformed is found by the sampling inspector(s).

(iii) The production lot or run of inside containers to which the plan was intended to be applied have been inspected.

(7) The special permit holder shall maintain, for the duration of production and no less than two years after, records indicating the type and number of inside containers tested in accordance with this special permit, the number of defective inside containers found, and the sampling frequency, f , used during these periods of production. The records must be made available to a DOT representative upon request.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit, but receives a packaging covered by this special permit, may reoffer it for transportation provided no modification or change is made to the packaging and it is offered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING:

(1) Each inside container must be plainly and durably marked "DOT-SP 20690".

(2) Each outside packaging must be marked "INSIDE CONTAINERS MUST COMPLY WITH DOT-SP 20690"

d. Inside containers filled with a material meeting the definition of a "Consumer commodity" in § 171.8 may be reclassified as ORM-D and shipped as "Consumer commodity" in accordance with § 173.306(i).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo-only aircraft, passenger aircraft.

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10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49

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CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Ben Moore/kah